United Nations A/HRC/WG.6/53/SWZ/3

General Assembly

Distr.: General
10 August 2026

Original: English

Human Rights Council
Working Group on the Universal Periodic Review
Fifty-third session
Geneva, 2–13 November 2026

Summary of stakeholders' submissions on Eswatini*

Report of the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the periodicity of the universal periodic review and the outcome of the previous review.[1] It is a summary of 19 stakeholders' submissions[2] for the universal periodic review, presented in a summarized manner owing to word-limit constraints.

II. Information provided by stakeholders

A. Scope of international obligations[3] and cooperation with human rights mechanisms

2. Amnesty International (AI) stated that Eswatini had still not ratified OP-CAT, the ICCPR-OP 2, the OP-CEDAW, and the ICRMW.[4]

3. JS5 recommended that Eswatini ratify the ICCPR-OP 2.[5]

4. Solidarity & Unity (SU) recommended that Eswatini ratify the ICRMW stating that its ratification and compliance with the treaty would not only ensure greater integration abilities for working migrants, but importantly also ensure greater protection enjoyed by their female family members.[6]

5. JS3 recommended that Eswatini ratify the OP-CEDAW.[7]

6. JS3 recommended that Eswatini ratify OP-CAT without delay, and establish an independent, adequately resourced NPM with unfettered access to all places of detention.[8]

7. Sinatsisa Lubombo Women and Girls Empowerment Organisation (SNL) recommended that Eswatini ratify the ILO Violence and Harassment Convention, 2019 (No. 190).[9]

* The present document is being issued without formal editing.

Please recycle

8. JS4 recommended that Eswatini accede to the Rome Statute of the International Criminal Court and accede to the Agreement on Privileges and Immunities of the International Criminal Court.[10]

9. The Center for Global Nonkilling (CGNK) recommended that Eswatini ratify the Convention on the Prevention and the Punishment of the Crime of Genocide.[11]

10. The International Campaign to Abolish Nuclear Weapons (ICAN) recommended that Eswatini sign and ratify the UN Treaty on the Prohibition of Nuclear Weapons as a matter of international urgency.[12]

11. JS1 recommended that Eswatini facilitate a country visit by the United Nations Independent Expert on the enjoyment of human rights by persons with albinism.[13]

B. National human rights framework

1. Constitutional and legislative framework

12. The El Hak Foundation for Freedom of Expression and Human Rights (El Hak) stated that in the third cycle Eswatini had received and accepted recommendations to repeal the 1938 Sedition and Subversive Activities Act and to reform the 2008 Suppression of Terrorism Act to comply with international standards, ensuring they were not used to silence journalists, activists, and human rights defenders. It stated that Eswatini had not undertaken any legislative reforms in that regard. It also stated that in a major setback in August 2024, the Supreme Court had upheld the constitutionality of the “Suppression of Terrorism Act” and restrictive sections of the "Sedition Act," providing authorities with judicial cover to continue criminalizing the opposition and restricting freedom of expression and assembly. Eswatini had introduced the Non-Profit Organizations Bill of 2024 which imposed stifling registration and administrative restrictions on civil society, threatening to criminalize human rights work.[14]

13. El Hak recommenced that Eswatini immediately repeal or radically amend the 2008 Suppression of Terrorism Act and the 1938 Sedition and Subversive Activities Act in compliance with the obligations under the International Covenant on Civil and Political Rights.[15]

2. Institutional infrastructure and policy measures

14. El Hak stated that the Commission on Human Rights and Public Administration still lacked full functional and financial independence and had been unable, by the end of 2025, to fully comply with the Paris Principles.[16]

15. JS3 stated that the Human Rights and Public Administration Bill contained gaps, including insufficient guarantees of institutional independence, unclear investigative powers, and weaknesses in administrative oversight. The Bill also failed to fully address operational and legal shortcomings, leaving ambiguity around enforcement mechanisms and the Commission’s authority to hold public officials accountable. It was also concerned that the Bill did not adequately incorporate protections for marginalized and vulnerable groups.[17]

16. JS3 urged Eswatini to finalize and enact the Human Rights and Public Administration Bill in full compliance with the Paris Principles.[18]

C. Promotion and protection of human rights

1. Implementation of international human rights obligations, taking into account applicable international humanitarian law

Equality and non-discrimination

17. JS1 stated that persons with albinism constituted one of the most marginalized groups in Eswatini, facing intersecting forms of discrimination linked to disability, physical appearance, poverty, and entrenched social stigma. Despite constitutional guarantees of

equality and the adoption of disability-related legislation and policies, persons with albinism continued to experience significant barriers to the enjoyment of their fundamental rights.[19]

18. JS1 stated that persons with albinism continued to face systemic barriers in education, including inadequate reasonable accommodation for visual impairments and widespread bullying in schools. In the health sector, limited access to sunscreen, dermatological screening, and specialized eye care exposed many individuals to preventable health risks, including skin cancer. Employment opportunities remained restricted due to discrimination, educational disadvantage, and unsafe working conditions. At the same time, persistent stigma and harmful myths contributed to social exclusion and, in some cases, violence and threats against persons with albinism.[20]

19. JS1 recommended that Eswatini conduct sustained nationwide public awareness campaigns, in partnership with civil society and traditional leaders, to dispel myths and harmful beliefs about albinism and promote inclusion.[21]

20. JS1 recommended that Eswatini integrate information about albinism, disability rights, and non-discrimination into school curricula and community education programmes.[22]

21. The European Centre for Law and Justice (ECLJ) urged Eswatini to continue its commitment to protect persons with albinism from being discriminated against and attacked. It stated that persons with albinism were targeted due to stigma, stereotypes, and erroneous and harmful religious beliefs, and that it was important that Eswatini continue combating those myths by raising awareness and educating the population, and that the King continue making public statements on the same.[23]

22. JS8 recommended that Eswatini adopt and implement comprehensive anti-discrimination measures covering all grounds, including sexual orientation and gender identity.[24]

23. JS8 recommended that Eswatini adopt specific legislation on hate crimes and hate speech, including protection against online and offline violence targeting LGBTIQ persons, and strengthen reporting, investigation, and accountability mechanisms for hate-motivated violence and discrimination.[25]

Right to life, liberty and security of person, and freedom from torture

24. JS5 recommended that Eswatini abolish the death penalty and replace it with penalties that were fair, proportionate, and consistent with international human rights standards, and in the interim institute a de jure moratorium on executions and commute all remaining death sentences to a term of imprisonment.[26]

25. JS3 stated that there were incidents of alleged torture and other cruel, inhuman or degrading treatment of detainees, particularly of those held for expressing political opinions or linked to protest activity.[27]

26. JS3 recommended that Eswatini investigate all allegations of torture and ill-treatment of detainees and hold responsible officials to account.[28]

27. AI stated that Section 23 of the Suppression of Terrorism Act permitted detention without charge on imprecise grounds, without guaranteeing access to independent legal counsel or requiring the detainee to be produced before a judge when extensions were sought, creating conditions conducive to torture and other ill-treatment.[29]

28. AI recommended that Eswatini investigate promptly, independently and effectively all allegations of torture or other ill-treatment in custody, including in Suppression of Terrorism Act linked cases, and ensure accountability and access to effective remedies and reparation for victims.[30]

29. El Hak recommended that Eswatini immediately and unconditionally release prisoners of conscience and parliamentarians, drop politically motivated charges, and launch an investigation into their subjection to torture while in detention.[31]

30. Human Rights Foundation (HRF) recommended that Eswatini immediately release all individuals arbitrarily detained for exercising their fundamental rights to freedom of

expression, peaceful assembly, and association, and ensure that all detainees were treated humanely and in line with international standards.[32]

31. AI recommended that Eswatini ensure prompt, regular and independent judicial oversight of all detentions, and ensure that bail decisions were grounded in individualized assessment, not used as a tool of punishment or political pressure, and subject to timely review.[33]

32. AI recommended that Eswatini guarantee immediate and confidential access to a lawyer of choice, adequate time and facilities to prepare a defence, and equality of arms in all Suppression of Terrorism Act linked proceedings, including access to evidence and case materials necessary to mount an effective defence.[34]

33. AI recommended that Eswatini ensure detainees' rights in custody, including timely access to independent medical care, contact with family, and conditions of detention consistent with international standards.[35]

34. JS5 stated that overcrowding in detention facilities was common, with reportedly between 20 and 45 people in a single cell. Nine of Eswatini's 11 correctional facilities had detained people for more than 12 months without trial and were nearly 50% over capacity. Prisons had poor ventilation, insufficient food, and inadequate medical services, and prison authorities failed to address violence committed by detained persons.[36]

35. JS5 recommended that Eswatini step up efforts to align detention conditions with the Nelson Mandela Rules and the Bangkok Rules.[37]

36. JS5 recommended that Eswatini ensure that the Commission on Human Rights and Public Administration had unfettered access to all places of detention at all times, and commit to implementing the 2025 recommendations of the Commission on Human Rights and Public Administration for reducing prison overcrowding and improving detention conditions.[38]

Human rights and counter-terrorism

37. AI stated that the provisions of the Suppression of Terrorism Act on: (a) the definition of a "terrorist act" and related definitional clauses; (b) offences that can criminalise "support", "assistance", "encouragement/solicitation", "membership/association", and related conduct; (c) any designation/listing ("specified entity") framework and its consequences; (d) offences relating to financing/material support; and (e) investigative and procedural powers that affect arrest, detention, bail and trial safeguards raised concerns about compatibility with international human rights law, including the rights to freedom of expression, association and peaceful assembly and guarantees of fair trial.[39]

38. AI assessed that, since the previous review, Eswatini had neither taken adequate steps to bring the Suppression of Terrorism Act into line with international standards, nor to ensure that the Act was not used to criminalise peaceful dissent. Instead, the legal and institutional environment had continued to enable the use of a "terrorism" framing and severe criminal provisions against individuals exercising their human rights.[40]

39. AI stated that further concrete action was still required to ensure that counter-terrorism legislation and practice could not be used to criminalise peaceful dissent and that due process safeguards were fully guaranteed in all Suppression of Terrorism Act linked cases.[41]

Administration of justice, including impunity, and the rule of law

40. The International Commission of Jurists (ICJ) stated that public confidence in the judiciary in Eswatini was very low. There was significant consensus among the legal community in Eswatini that individuals appointed to judicial office were often unqualified for those positions, including due to little or no experience in legal practice. Many judges were perceived by lawyers to be intimidated by basic aspects of their judicial roles. In addition, lawyers frequently raised concerns about the appointment as judges of lawyers who were members of, or had close connections to, the royal family.[42]

41. El Hak stated that the judiciary suffered from systematic interference and a total lack of transparency, with the widespread practice of appointing judges on temporary or short-term contracts, subjecting them to direct executive influence.[43]

42. ICJ stated that some lawyers noted that cases relating to terrorism charges and questions concerning the constitutional validity of critical legislation on terrorism, sedition and public order policing were consistently heard by very specific judges, commonly perceived to be sympathetic to the government and the King.[44]

43. AI noted persistent accountability gaps for serious violations, including failures to investigate unlawful killings such as the killing of human rights lawyer Thulani Maseko, contributing to a broader climate of impunity that weakened protection for civic space and the rule of law.[45]

44. ICJ stated that lawyers representing clients perceived as "political" faced serious and intersecting threats. These included risks to life and physical safety, harassment and intimidation (including threats of sexual violence against women lawyers), economic retaliation, and improper association with their clients' alleged conduct solely for carrying out legitimate professional functions. Lawyers also reported systemic pressures that undermined their ability to act independently, particularly in cases arising from the June 2021 unrest. Those challenges had been further intensified by the killing of Thulani Maseko and the broader shrinking of civic space.[46]

45. El Hak stated that Eswatini had completely failed to conduct transparent, independent, and impartial investigations into the mass killings and grave violations that had accompanied the 2021 protests, and that no security leaders had been brought to justice.[47]

46. AI recommended that Eswatini ensure effective accountability for all human rights violations, including by conducting independent, impartial and effective investigations into unlawful killings and other abuses, and ensuring victims' families had access to truth, justice and remedy.[48]

47. ICJ recommended that Eswatini establish a fully independent mechanism comprising a mix of independent Eswatini lawyers and independent international legal experts, including from the African region, with a view to expediting effective, thorough and impartial investigations of the deaths and injuries of protesters in connection with June 2021 unrest, Thulani Maseko's extrajudicial killing, and the harassment, intimidation and targeting of lawyers and human rights defenders, for alleged conduct relating to legitimate exercise of freedom of expression and political participation, including criticism of the government and government policy and conduct, calls for constitutional reform, and advocacy for democracy and human rights.[49]

48. JS1 stated that persons with albinism rarely accessed remedies for discrimination or violence, and data on investigations, prosecutions, and convictions related to attacks against persons with albinism were not publicly available in a systematic manner.[50]

49. JS1 recommended that Eswatini establish a national prevention and monitoring mechanism for violence against persons with albinism, including a confidential reporting system for threats and attempted attacks, clear referral pathways for protection and emergency support, and regular public reporting on cases and outcomes.[51]

50. JS1 recommended that Eswatini ensure that all allegations of violence, attempted violence, or trafficking involving persons with albinism were promptly investigated and prosecuted, and that perpetrators were sanctioned in accordance with the Persons with Disabilities Act and applicable criminal law.[52]

51. JS5 recommended that Eswatini adopt a comprehensive legal aid bill, with dedicated funding for the provision of free legal aid for all persons accused of crimes, prioritizing in the first instance people charged with capital crimes.[53]

52. ICJ recommended that Eswatini immediately desist from any acts of persecution, intimidation and harassment of lawyers, end unlawful surveillance of lawyers in connection with their carrying out their professional functions, and provide protection to lawyers who report intimidation, harassment and reprisal.[54]

53. JS3 stated that despite recurring reports of corruption and public concern, no significant arrests had been made, signalling a persistent lack of political will to empower the Anti-Corruption Commission or enforce anti-corruption laws. Eswatini also had no substantive or specific whistleblower protection legislation.[55]

Fundamental freedoms and the right to participate in public and political life

54. HRF stated that the rights to freedom of expression, peaceful assembly, and association remained severely restricted in Eswatini. Pro-democracy civil society organizations and political movements faced systematic repression. Draconian legislation, most notably the 1938 Sedition and Subversive Activities Act (Sedition Act) and the 2008 Suppression of Terrorism Act (STA) were routinely invoked to criminalize dissent, protest activity, and political organizing perceived as challenging monarchical authority.[56]

55. JS6 stated that human rights and fundamental freedoms continued to be restricted in Eswatini with the subjective application of the rule of law and high levels of impunity for perpetrators of human rights violations forcing many human rights defenders, activists and journalists forced to self-censor to avoid reprisals.[57]

56. ICJ stated that despite repeated recommendations to the contrary, Eswatini continued to implement and apply overly broad provisions of its Suppression of Terrorism Act, the Sedition and Subversive Activities Act, and the Public Order Act to suppress dissent, disagreement and legitimate protests.[58]

57. ICJ recommended that Eswatini review and repeal or amend the Sedition and Subversive Activities Act, the Suppression of Terrorism Act, and the Public Order Act to ensure compliance with the Constitution and international human rights law and standards.[59]

58. AI recommended that Eswatini withdraw all charges brought solely under the Suppression of Terrorism Act that related to the peaceful exercise of the rights to freedom of expression, association and peaceful assembly, and release anyone detained solely for such conduct, pending repeal and/or review of their cases in proceedings that complied with international fair trial standards.[60]

59. AI recommended that Eswatini cease using the Suppression of Terrorism Act and other security laws to criminalise peaceful dissent, including peaceful protest, student activism, journalism, human rights work, and political organising.[61]

60. AI recommended that Eswatini protect human rights defenders, lawyers, and civil society organisations from intimidation, surveillance, threats and reprisals, and ensure they could carry out their work without interference.[62]

61. HRF recommended that Eswatini respect, protect, and uphold constitutional and international guarantees of freedom of expression, freedom of the press, and the right to peaceful assembly and association, ensuring that individuals, including activists, journalists, lawyers, critics, and opposition groups, could speak out, report, and protest peacefully without fear of censorship, reprisals, arbitrary arrest, detention, violence, or extrajudicial killings.[63]

62. HRF stated that Eswatini had systematically repressed and criminalized student activism.[64]

63. JS6 recommended that Eswatini promote freedom of expression online and offline and media freedoms and investigate all violence against journalists ensuring that perpetrators were held to account.[65]

64. AI recommended that Eswatini ensure that journalists and media outlets could operate freely and safely, including by ending harassment and intimidation through legal threats or "terrorism" labelling, and by guaranteeing protections for freedom of expression in law and practice.[66]

65. HRF stated that widespread reports had documented violence targeting dissidents, protesters, and activists who supported democratic views or criticized the monarchy. Journalists covering those cases had allegedly faced ill-treatment, including torture. Armed agents routinely harassed, intimidated, surveilled, threatened, and attacked lawyers in politically sensitive cases, especially those defending pro-democracy clients. Police offered little protection, and courts failed to investigate serious crimes such as attempted assassinations or extrajudicial killings, reinforcing impunity and concerns over judicial independence.[67]

66. JS5 stated that Eswatini did not have a comprehensive legal framework for the protection of human rights defenders, leaving them vulnerable and unable to carry out their important work freely and safely.[68]

67. HRF stated that although the Constitution formally guaranteed freedom of the press, a range of media laws were routinely invoked to curtail that right in practice. Material could be banned if it was critical of the government, "prejudicial" to public order, or portrayed the King's forces unfavourably. The laws had been widely criticized as excessively broad and restrictive, affording Eswatini sweeping discretionary powers and enabling de facto censorship.[69]

68. HRF stated that King Mswati III exercised significant influence over most media outlets in the country. Independent media and journalists were frequently targeted for their critical reporting, often facing intimidation and costly legal challenges intended to obstruct their work, restrict freedom of expression, and effectively criminalize press activity.[70]

69. JS8 stated that hate speech and targeted intimidation on social media platforms remained a concern, particularly for activists and organizations working on sexual orientation and gender identity issues.[71]

70. El Hak stated that Eswatini recurrently resorted to completely shutting down internet services to block information during protests.[72]

71. JS6 recommended that Eswatini allow for activists, individuals, representatives of unions and civil society organizations to demonstrate peacefully on issues affecting them without resorting to violence, arrests and intimidation.[73]

72. JS6 stated that the continued legal and practical ban on political parties exemplified Eswatini's entrenched resistance to pluralism and undermined the foundational principle of free association. Civil society organizations that focused on non-political or service delivery issues were generally allowed to operate, but those that challenged the status quo faced systemic repression.[74]

73. JS6 stated that the political formation the People's United Democratic Movement had been designated as a terrorist organization by the authorities and that its leaders and members had been subjected to judicial persecution, harassment, intimidation and arrests.[75]

74. JS6 recommended that Eswatini lift the political and legal ban on political parties and allow them to be formed and to participate in democratic processes in the country.[76]

75. JS6 recommended that Eswatini lift all restrictions on political formations including those identified as "terrorist" organizations and allow their members to engage in peaceful human rights activities.[77]

76. JS6 stated that the proposed Non-Profit Organizations Bill 2024, if enacted in its current form, would impose burdensome registration procedures, intrusive monitoring and inspection powers, and complex reporting requirements that could stifle grassroots organizing and advocacy.[78]

77. JS6 recommended that Eswatini allow for the registration of all civil society organizations that advocated for the rights of excluded groups and communities including the Swaziland National Union of Students and the Eswatini Sexual and Gender Minorities, in line with constitutional provisions that guaranteed freedom of association.[79]

78. JS8 stated that existing laws and administrative practices did not adequately safeguard freedom of association and assembly for LGBTIQ groups. The absence of explicit protections, combined with broad discretionary powers, allowed for delays or refusals in registration and restrictions on peaceful gatherings.[80]

Right to work and to just and favourable conditions of work

79. JS6 stated that Eswatini continued to intimidate and harass leaders and members of trade unions with the aim of silencing them. It recommended that Eswatini stop targeting members of unions and other political formations with judicial persecution, arbitrary arrests, threats, violence and victimization and ensure they were able to carry out their human rights activities without fear of intimidation or reprisals.[81]

Right to social security

80. JS8 recommended that Eswatini strengthen access to social protection programmes by removing discriminatory administrative barriers and simplifying application processes, and establish safeguards and complaint mechanisms to prevent discrimination in social assistance delivery.[82]

Right to an adequate standard of living

81. Just Atonement Inc. (JAI) stated that Eswatini should take steps to ensure access to water and sanitation on the basis of non-discrimination and taking into account the unequal impacts on women and girls.[83]

Right to health

82. JS3 recommended that Eswatini ensure the provision of quality healthcare, in accordance with the African Union Abuja Declaration (2001) commitment to allocate at least 15% of the annual national budget to the health sector.[84]

83. The Center for Family and Human Rights (C-Fam) recommended that Eswatini continue to improve maternal and child health outcomes, including by increased investment in the training and provision of medical professionals and expanding access to skilled birth attendants, nutrition, and accessible services for those in rural and remote areas, and ensure availability of antiretroviral treatments for women with HIV.[85]

Right to education

84. El Hak stated that despite providing grants for orphans and school feeding programs, school dropout rates, especially for girls due to hidden costs, poverty, and early pregnancy, remained major challenges.[86]

85. JS2 stated that school drop-out rates remained high due to factors such as poor performance of schools, poverty, child labour, lack of parental involvement and a long distance between the school and the living place of the child.[87]

86. JS1 recommended that Eswatini ensure that all learners with albinism had access to reasonable accommodation in mainstream schools and strengthen anti-bullying policies and reporting mechanisms in schools to protect learners with albinism from harassment and exclusion.[88]

87. JS8 stated that there was discrimination against LGBTIQ students within the education system, affecting learners' access to education, safety, and mental well-being. LGBTIQ students faced heightened risks of exclusion, bullying, and psychological harm.[89]

88. JS8 recommended that Eswatini develop and implement a rights-based education policy that prevented discrimination, bullying, and exclusion in schools.[90]

2. Rights of specific persons or groups

Women

89. El Hak stated that rates of gender-based violence and rape remained extremely high, prompting local women's rights groups in late 2024 and 2025 to call on the Government to declare violence against women a national emergency.[91]

90. JS2 recommended that Eswatini strengthen existing frameworks to end discrimination against women and girls.[92]

91. SNL recommended that Eswatini open fully equipped One-Stop Survivors' Centres in the Lubombo, Manzini, Shiselweni, and Hhohho Regions by 2029, providing medical care, legal aid, counselling, and shelter referral, and open government-funded shelters and transitional housing in Shewula, Mhlumeni, Lonhlupheko, Lubhuku, Lomahasha, Siphofaneni, Dvokodvweni, Nkilongo, and Lubuli Tinkhundla, where no survivor services currently existed.[93]

92. SNL recommended that Eswatini establish specialised gender-based violence courts or fast-track prosecution mechanisms in all four regions, supported by survivor and witness protection mechanisms and investment in forensic investigation capacity, to address the 91% case withdrawal rate documented in Lubombo.[94]

93. JS3 stated that despite constitutional guarantees of equal access to land, dual tenure (Title Deed Land and Swazi Nation Land) and customary allocation practices continued to restrict women's tenure rights, limiting credit access and livelihood security.[95]

Children

94. ECLJ encouraged Eswatini to continue its work to bring down rates of child marriage.[96]

Persons with disabilities

95. JS3 stated that persistent stigma and discrimination continued to exclude persons with disabilities from economic participation and decent work. Poverty heightened their exposure to abuse, and frontline justice actors including the police were insufficiently trained to interact with, accommodate, and protect persons with diverse disabilities.[97]

96. JS3 stated that the cumulative extra cost of disability covering transport, accessible education, and healthcare placed a disproportionate financial burden on households, undermining the promise of the legal framework and reinforcing exclusion of persons with disabilities.[98]

Lesbian, gay, bisexual, transgender and intersex persons

97. JS8 stated that there was no comprehensive anti-discrimination legislation explicitly prohibiting discrimination based on sexual orientation and gender identity.[99]

98. JS8 stated that consensual same-sex conduct remained effectively criminalized in Eswatini through the continued existence of colonial-era common law offences. Although prosecutions were rare, the legal environment contributed to stigma, fear, and discrimination against LGBTQIA+ persons. That context was reinforced by public statements from influential leaders that condemned same-sex relations, which might legitimize discrimination and increase risks of harassment and exclusion. LGBTQIA+ persons reported experiences of stigma, social exclusion, and barriers to accessing services, including healthcare and justice.[100]

99. JS7 stated that the LGBTI community faced significant challenges in accessing education, employment, family acceptance, and social opportunities. Those difficulties were largely rooted in the negative attitudes, stigma, and rejection they encountered from their families, service providers, and society at large. As a result, they often experienced a denial of legal recognition of their rights based on their gender identities and sexual orientation.[101]

100. JS8 stated that the Employment Act did not explicitly prohibit discrimination based on sexual orientation or gender identity, and recent reform processes had not incorporated those grounds.[102]

101. JS3 recommended that Eswatini adopt a comprehensive Equality/Anti-Discrimination Act that explicitly prohibited discrimination based on sexual orientation and gender identity across employment, education, health and service delivery, and repeal the common-law offence of "sodomy" to remove the legal basis for stigma and exclusion.[103]

102. JS7 recommended that Eswatini promote the enactment of hate speech laws designed to protect LGBTI individuals by clearly defining and prohibiting communication that incited violence, hatred, or discrimination based on sexual orientation and gender identity.[104]

Migrants, refugees and asylum-seekers

103. SU stated that Malindza Refugee Reception Center, the only facility for receiving and accommodating refugees and asylum seekers, was significantly overcrowded, stretching its resources, rationing supplies and struggling to ensure sanitary standards.[105]

104. SU recommended that Eswatini adopt measures to enable the full operationalization of the National Refugee Appeals Board, as envisioned by the Refugee Act 2017.[106]

Stateless persons

105. JS3 noted ongoing protection gaps affecting people at risk of statelessness, including gender-discriminatory nationality provisions that still prevented women from conferring nationality to children on an equal basis with men, and the absence of fully operational safeguards to ensure that children otherwise stateless acquired nationality at birth and that loss or deprivation of nationality did not result in statelessness.[107]

106. SU recommended that Eswatini guarantee, through appropriate legislative measures, equal rights to fathers and mothers with regard to the transmission of nationality to their children.[108]

Notes

[1] A/HRC/49/14, A/HRC/49/14/Add.1, and A/HRC/49/2.

[2] The stakeholders listed below have contributed information for this summary; the full texts of all original submissions are available at: www.ohchr.org.

Civil society

Individual submissions:

AI	Amnesty International, London (United Kingdom of Great Britain and Northern Ireland);
C-Fam	Center for Family and Human Rights, New York (United States of America);
CGNK	Center for Global Nonkilling, Grand-Saconnex (Switzerland);
ECLJ	The European Centre for Law and Justice, Strasbourg (France);
El Hak	The El Hak Foundation for Freedom of Expression and Human Rights, Cairo (Egypt);
HRF	Human Rights Foundation, New York (United States of America);
ICAN	The International Campaign to Abolish Nuclear Weapons, Geneva (Switzerland);
ICJ	The International Commission of Jurists, Geneva (Switzerland);
JAI	Just Atonement Inc., New York (United States of America);
SNL	Sinatsisa Lubombo Women and Girls Empowerment Organization, Siteki (Eswatini);
SU	Solidarity & Unity, Markelo (Netherlands).

Joint submissions:

JS1	**Joint submission 1 submitted by:** Africa Albinism Network, Dar es Salaam (United Republic of Tanzania); Africa Albinism Network; Swaziland Association of Persons with Albinism;
JS2	**Joint submission 2 submitted by:** Christian Council International, Bodegraven (Netherlands); Restoring Laminin;
JS3	**Joint submission 3 submitted by:** Coordinating Assembly of Non-Governmental Organizations (CANGO), Mbabane (Eswatini); Federation of Swaziland Employers and Joint Council (FSEJ); Eswatini Sexual and Gender Minorities (ESGM); Council of Eswatini Churches; Youth Sustainable Development Centre; Swaziland Rural Women's Assembly; Federation of the Disabled in Swaziland;
JS4	**Joint submission 4 submitted by:** Parliamentarians for Global Action, New York (United States of America); Global Initiative Against Impunity for International Crimes and Serious Human Rights Violations [a Consortium of nine NGOs: Civil Rights Defenders, the Coalition for the International Criminal Court, the European Center for Constitutional and Human Rights, Impunity Watch, the International Federation for Human Rights, Parliamentarians for Global Action, REDRESS, TRIAL International, and Women's Initiatives for Gender Justice];

JS5	**Joint submission 5 submitted by:** Advocates for Human Rights, Minneapolis (United States of America); The World Coalition Against the Death Penalty; Prisoners' Future Foundation;
JS6	**Joint submission 6 submitted by:** Hivos - Humanist Institute, The Hague (Netherlands); Hivos Eswatini Human Rights Defenders Network;
JS7	**Joint submission 7 submitted by:** Gender DynamiX, Cape Town (South Africa); TransSwati;
JS8	**Joint submission 8 submitted by:** United Voices for Diversity Coalition, Manzini (Eswatini).

[3] The following abbreviations are used in UPR documents:

ICERD	International Convention on the Elimination of All Forms of Racial Discrimination
ICESCR	International Covenant on Economic, Social and Cultural Rights
OP-ICESCR	Optional Protocol to ICESCR
ICCPR	International Covenant on Civil and Political Rights
ICCPR-OP 1	Optional Protocol to ICCPR
ICCPR-OP 2	Second Optional Protocol to ICCPR, aiming at the abolition of the death penalty
CEDAW	Convention on the Elimination of All Forms of Discrimination against Women
OP-CEDAW	Optional Protocol to CEDAW
CAT	Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
OP-CAT	Optional Protocol to CAT
CRC	Convention on the Rights of the Child
OP-CRC-AC	Optional Protocol to CRC on the involvement of children in armed conflict
OP-CRC-SC	Optional Protocol to CRC on the sale of children, child prostitution and child pornography
OP-CRC-IC	Optional Protocol to CRC on a communications procedure
ICRMW	International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families
CRPD	Convention on the Rights of Persons with Disabilities
OP-CRPD	Optional Protocol to CRPD
ICPPED	International Convention for the Protection of All Persons from Enforced Disappearance

[4] AI, para. 13. See also El Hak, p. 2.
[5] JS5, para. 47.
[6] SU, para. 17 and p. 7.
[7] JS3, para. 4.
[8] Ibid., para. 8.
[9] SNL, para. 1 (h).
[10] JS4, para. 5.
[11] CGNK, p. 2.
[12] ICAN, p. 1.
[13] JS1, p. 17.
[14] El Hak, p. 2.
[15] El Hak, p. 4. See also AI, para. 35.
[16] El Hak, pp. 2 and 4.
[17] JS3, para. 19.
[18] Ibid., para. 21.
[19] JS1, p. 5.
[20] Ibid., p. 2.
[21] Ibid., p. 17.
[22] Ibid, p. 17.
[23] ECLJ, para. 21.
[24] JS8, p. 15.
[25] Ibid., p. 16.
[26] JS5, para. 47.

[27] JS3, para. 7.
[28] Ibid., para. 8.
[29] AI, para. 19.
[30] Ibid., para. 48.
[31] El Hak, p. 4.
[32] HRF, para. 36 (d).
[33] AI, para. 45.
[34] Ibid., para. 46.
[35] Ibid., para. 47.
[36] JS5, paras. 27 and 29.
[37] Ibid., para. 47.
[38] Ibid., para. 47.
[39] AI, para. 15.
[40] Ibid., para. 5.
[41] Ibid., para. 9.
[42] ICJ, paras. 5 and 12.
[43] El Hak, p. 3.
[44] ICJ, para. 17.
[45] AI, para. 33. See also HRF, para. 33; and JS6, para. 1.6.
[46] ICJ, para. 21.
[47] El Hak, p. 3.
[48] AI, para. 53.
[49] ICJ, para. 30 (h).
[50] JS1, p. 15.
[51] Ibid., p. 16.
[52] Ibid., p. 16.
[53] JS5, para. 47.
[54] ICJ, para. 30 (b).
[55] JS3, para. 23.
[56] HRF, para. 22.
[57] JS6, para. 1.5.
[58] ICJ, para. 24.
[59] ICJ, para. 30 (f). See also JAI, para. 33.
[60] AI, para. 36.
[61] Ibid., para. 49.
[62] Ibid., para. 51.
[63] HRF, para. 36 (b).
[64] Ibid., para. 24.
[65] JS6, para. 6.3.2.
[66] AI, para. 50.
[67] HRF, para. 28.
[68] JS5, para. 7.
[69] HRF, para. 17.
[70] Ibid., para. 18.
[71] JS8, p. 14.
[72] El Hak, p. 3.
[73] JS6, 6.2.3.
[74] Ibid., para. 2.2.
[75] Ibid., para. 2.6.
[76] Ibid., para. 6.1.1.
[77] Ibid., para. 6.2.2.
[78] Ibid., para. 2.3.
[79] Ibid., para. 6.1.2.
[80] JS8, p. 14.
[81] JS6, paras. 2.7 and 6.1.4.
[82] JS8, p. 15.
[83] JAI, para. 13.
[84] JS3, para. 42.
[85] C-Fam, para. 21.
[86] El Hak, p. 4.
[87] JS2, para. 34.
[88] JS1, pp. 16–17.

[89] JS8, p. 10.
[90] Ibid., p. 15.
[91] El Hak, p. 3.
[92] JS2, para. 26 (a).
[93] SNL, para. 1 (b).
[94] Ibid., para. 1 (d).
[95] JS3, para. 63.
[96] ECLJ, para. 20.
[97] JS3, para. 58.
[98] Ibid., para. 58.
[99] JS8, p. 6.
[100] Ibid., p. 6
[101] JS7, p. 3.
[102] JS8, p. 12.
[103] JS3, para. 70.
[104] JS7, p. 5.
[105] SU, para. 2.
[106] Ibid., p. 7.
[107] JS3, para. 10.
[108] SU, p. 7.